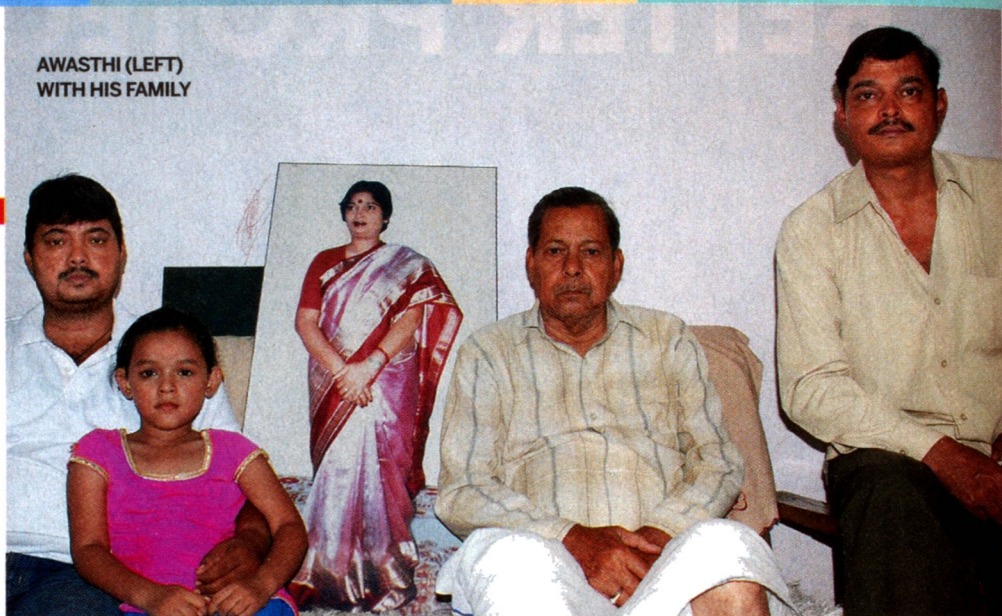


ALL IN THE FAMILY

Brijesh Awasthi, 34
Sunita Awasthi, 33

Brijesh claims that his brother-in-law borrowed money which he did not want to repay and in turn told his sister that Awasthi was planning to remarry secretly. Sunita committed suicide and his in-laws charged him with dowry killing. He is now bringing up his two daughters.



AWASTHI (LEFT)
WITH HIS FAMILY

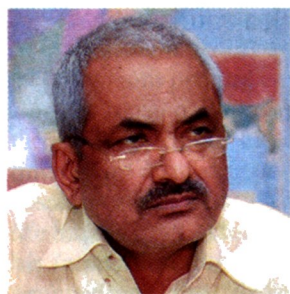
Forgotten Women coming up across the country. Salem in Tamil Nadu hosts a national-level meeting of victims of the wife in August every year.

"I have no hesitation in saying the Act has become a money-making machine for the police and lawyers," says Vikas Parihar, another victim. Swarup Sarkar, founding member of the Save Indian Family Campaign, said over 2,000 NGOs are working all over the country for women's welfare, but not a single one for the welfare of men. Sarkar added that most dowry cases are registered against economically sound families and then a gang of police personnel and advocates start extorting from the groom's family. "How can a mere verbal statement by a woman be made the ground for the arrest of an entire family, including minors and elders without an investigation? This is unconstitutional and illegal. Even the Supreme Court has issued directives

to first investigate DPA-related complaints and then make arrests," says Sarkar. In view of a growing number of dowry-related cases, the Lucknow Bench of the Allahabad High Court has constituted a Mediation and Conciliation Centre in the court campus. Senior lawyer I.B Singh, chairman of the centre, said that in the last eight months, 622 cases were referred to the centre, out of which 500 cases were dowry related but there was not a single case in which dowry was the real cause of dispute. Shabnam Siddiqui, a member of the centre said: "The misuse is increasing in the middle and upper middle classes with a good economic and educational background." Even the President, the Supreme Court and a number of high courts have expressed their concern over the misuse of the Act. The apex court has even described the phenomenon as "legal terrorism."

Lucknow's Nari Bandi Niketan holds 151 elderly women. "Most of them have to serve life terms," says a senior jail official. Many of them cannot walk independently or perform their daily chores. Most have been abandoned by their own relatives. A senior jail official said of these 151 inmates, 105 had no visitors in the last one year. The remaining 46 had just three visitors despite the fact that the jail manual allows 12 meetings. "These inmates are like our family members and we take care of them," says the official.

Indeed, it is common to see women and men between the ages of 65 and 70 years serving a life term. Apart from the mothers-in-law, sisters-in-law too were in jails with their children. Now the All India Mother-In-Law Protection Forum has come up to fight for their rights. Parihar says that the Act is taking a heavy toll on men, adding that more than two lakh married men committed suicide between 2005 and 2008 while the number of housewives was much less. Now, men are uniting across the country and demanding a review of the Act. That will be little consolation to the thousands of victims of vengeance and greed, stuck behind bars with their future in tatters. ■



“After murder cases, if there is any other crime sending the largest number of people to the jails, it is the Dowry Prohibition Act.”

SULKHAN SINGH, IG Uttar Pradesh Jails